2026:CGHC:23713

AFR

VISHAKHA BEOHAR Digitally signed by VISHAKHA BEOHAR

HIGH COURT OF CHHATTISGARH AT BILASPUR

Order Reserved on : 09.04.2026

Order passed on : 15.06.2026

WPS No. 5957 of 2023

1 - Dulari Patel D/o Fagu Lal Patel Aged About 28 Years Roll No. 25093500, Obtained, Marks 52.604, Overall Rank 37886, R/o Ward No. 12 Village And Post Gadbeda, P.S. And Tehsil Pithoura, District Mahasamund (C.G.) Pin 493551, Mob.- 7440490224

2 - Ramkishor Patel S/o Samru Patel Aged About 28 Years Roll No. 13153587, Obtained Marks 38.542, Overall Rank 72513, R/o Ward No. 4, Dumariha Para, Village And Post Donga Kohroud, Ps And Tahsil Pamgarh, District Janjgir-Champa (C.G.) Pin 495554, Mob.- 7389982490

3 - Shivlochan Rajak S/o Ram Kumar Rajak Aged About 30 Years Roll No. 13213448, Obtained Marks 60.417, Overall Rank 22942, R/o Ward No. 03, Yadav Mohalla, Village And District Bilaspur (C.G.) Pin 495112, Mob.- 7828731457

--- **Petitioner(s)**

versus

1 - State Of Chhattisgarh Its The Department Of School Education, Through The Principal Secretary, Mantralaya, Mahanadi Bhawan, Atal Nagar, Naya Raipur (C.G.) Pin 492002

2 - Public Education Directorate Chhattisgarh Through Its Director Having Its Office At Public Education Directorate Chhattisgarh, Mantralaya, Mahanadi Bhawan, Atal Nagar, Naya Raipur (C.G.) Pin 492002

3 - Chhattisgarh Professional Board (Vyapam) Through Its Secretary Chhattisgarh Professional Board (Vyapam), Vyapam Bhawan, North Block, Sector- 19, Atal Nagar, Naya Raipur (C.G.) Pin 492002

4 - Principal Secretary General Administration Department, Mantralaya, Mahanadi Bhawan, Atal Nagar, Naya Raipur (C.G.) Pin 492002

--- **Respondent(s)**

WPS No. 5964 of 2023

1 - Brij Kumar Sao S/o Tikeshwar Sao Aged About 30 Years Caste Obc R/o Village Tongopathra, Post Sukhipali, Thana Pithaura, District Mahasamund (C.G.)

2 - Ashish Pradhan S/o Vishwanath Pradhan Aged About 33 Years Caste Obc, R/o Village Toresingha, Post Toresingha, Tahsil Saraipali, District Mahasamund, Pin Code 493558

3 - Rajesh Kumar S/o Loknath Aged About 29 Years R/o Village Rengakathera, Post Mathaldabri, Tahsil Dongargaon, District - Rajnandgaon, (C.G.) - 491661

4 - Pallavi Sahu W/o Chandraprakash Sahu Aged About 32 Years R/o Village Nariyara, Tahsil Akaltara, District Janjgir (C.G.)

5 - Jyoti Patel D/o Pradeep Patel Aged About 35 Years R/o Near Jindal Pump House, Bodatikra, Post Garhumariya, District - Raigarh, (C.G.) 496001

6 - Shani Ram S/o Jawahar Lal Aged About 33 Years R/o Village Nawagaon, Post Nargoda, Tahsil Sipat, District - Bilaspur, (C.G.) - 495550

7 - Pallavi Sharma D/o Indra Kumar Sharma Aged About 35 Years R/o Near Shri Ram Talkies, Gangpara, Mahasamund, Dist. Mahasamund, (C.G.) 493445

8 - Pramod Kumar Sharma S/o Manoj Kumar Sharma Aged About 26 Years R/o Village Bilaspur, Thana Bilaspur, District Bilaspur (C.G.) 495551

9 - Padminee Sharma D/o Manoj Kumar Sharma Aged About 24 Years R/o Village Bilaspur, Thana Bilaspur, District Bilaspur, (C.G.) 495551

10 - Ramkishore Patel S/o Samaru Patel Aged About 28 Years R/o Dumariha Para, Donga Kohraud, Janjgir - Champa (C.G.) 495554

11 - Rameshwar Dhiwar S/o Ratirm Aged About 32 Years R/o Village Bhandi, Post Khaira (Dagniya), Thana Seepat, District Bilaspur (C.G.)

12 - Rashmi Sharma S/o Ramashish Sharma Aged About 29 Years R/o Silphili,post Kamari, Block Shankargarh, Dist. Balrampur - Ramanujganj (C.G.)

---Petitioner(s)

Versus

1 - State Of Chhattisgarh Through The Secretary, School Education Department, Mahanadi Bhawan, Mantralaya, Atal Nagar, Nawa Raipur (C.G.)

2 - Director Directorate Of Public Instructions, Indrawati Bhawan, Naya Raipur, Atal Nagar, Post Office And Police Station Naya Raipur, Atal Nagar, District - Raipur (C.G.)

--- Respondent(s)

(Cause-title is taken from Case Information System)

For Petitioners (in W.P.S. No. 5957/2023)	:	Mr. S. K. Rungta, Sr. Advocate (appearing through V.C.) assisted by Mr. Vijay K. Deshmukh and Ms. Tejaswi Madavi, Advocates
For Petitioners (in W.P.S. No. 5964 of 2023)	:	Mr. Shantam Awasthi, Advocate
For State	:	Mr. D. R. Minj, Dy. Advocate General
For CG-VYAPAM	:	Dr. Sudeep Agrawal, Advocate
For Interveners	:	Mr. Vikas Dubey, Advocate

(Single Bench)

Hon'ble Shri Justice Amitendra Kishore Prasad

CAV Order

1. Since the factual matrix and the core issues involved in the present batch of writ petitions are substantially identical, hence, matters were heard analogously with the consent of learned

counsel for the parties and are being disposed of by this common order.

2. The present writ petition has been preferred by the petitioners assailing the legality, propriety and constitutional validity of the impugned Advertisement No.Estt. 02 / Advt. / Dir. Appt. / 2023 / 155/Naya Raipur dated 04.05.2023 issued for direct recruitment to the posts of Teachers under E-Cadre and T-Cadre, Non-Gazetted Group ‘C’ (Pay Matrix Level-8), the impugned Advertisement No. Estt.02/Advt./Dir. Appt./2023/155/Naya Raipur dated 04.05.2023 issued for recruitment to the posts of Assistant Teachers under E-Cadre and T-Cadre, Non-Gazetted Group ‘C’ (Pay Matrix Level-6), as well as the consequential Notification dated 12.08.2023 issued for online counselling pursuant to the examination results declared by respondent No. 3, on the ground that the aforesaid advertisements and notification have been issued in patent violation of the mandatory statutory provisions contained under Section 34 of the Rights of Persons with Disabilities Act, 2016, Rule 11 of the Rights of Persons with Disabilities Rules, 2017 and the binding executive instructions issued by the State Government vide Office Memorandums dated 27.09.2014, 17.11.2014, 29.08.2018 and 05.03.2019 governing reservation for persons with benchmark disabilities. The grievance of the petitioners is that the respondents, while issuing the impugned advertisements and conducting the process of online counselling, have failed to provide category-wise reservation to persons with benchmark

disabilities by earmarking 2% reservation each for visually impaired, hearing impaired and loco-motor disability/cerebral palsy categories and 1% reservation for persons suffering from multiple disabilities, as statutorily mandated, and instead have illegally treated persons with disabilities as a single composite category, thereby defeating the very object and scheme of the enactment. It is further contended that the respondents have erroneously linked horizontal reservation for persons with disabilities with vertical/community reservation, contrary to the settled principles of law laid down by the Hon'ble Supreme Court and this Court. The petitioners have further challenged the impugned recruitment process on the ground that the respondents have failed to compute and provide the requisite 7% reservation against the total cadre strength, have not accounted for backlog vacancies required to be carried forward and filled in accordance with law, and have acted in disregard of the judgments rendered by the Hon'ble Supreme Court as well as the judgment dated 27.11.2015 passed by this Court in WP(PIL) No. 1470/2007 (Vijay Krishnrao Deshmukh Vs. State of Chhattisgarh & Others), despite specific undertakings given by the respondents therein. Hence, being aggrieved by the arbitrary, discriminatory and illegal action of the respondents, the petitioners have approached this Court by way of the present writ petition.

3. For the sake of convenience and to avoid repetition, the reliefs sought in Writ Petition (S) No. 5957 of 2023 are taken as the

common reliefs prayed for by the petitioners as the nature of grievances and the reliefs claimed therein are substantially identical across the present batch of petitions. In the said writ petition, the petitioners have prayed for following reliefs :

> *“10.1 Your Lordships may be please to issue a writ of certiorari or any other writ order or direction thereby calling for the records relating to the issuance of impugned advertisements bearing No. Est.02/Advt./Dir. Appt./2023/155/Naya Raipur dt. 4.5.2023 for filling up the posts of Teachers-E-Cadre Non Gazetted Group C (Pay Matrix level-8), Teacher-T-Cadre Non Gazetted Group C (Pay Matrix level-8) & Advertisement No. Estt. 02/Advt./Dir. Appt./2023/155/Naya Raipur dt.4.5.2023 for filing up the posts of Asstt. Teachers E-Cadre Non Gazetted Group C (Pay Matrix level-6), Asstt. Teacher-T-Cadre Non Gazetted Group C (Pay Matrix level-6) as well as impugned notification dt. 12.8.2023 for online counseling after the declaration of results for the exams conducted by respondent No.3 for selection to the said posts pursuant to the impugned advertisements, examine the same and quash the said advertisements and notice for online counseling declaring it*

to be illegal being in contravention of the statutory scheme of reservation, provisions of section 34 of RPWD Act 2016, Rule 11 of RPWD Rules 2017, the office memorandums issued by respondent s No. 3 dt.27.9.2014, 17.11.2014, 29.8.2018 & 5.3.2019 and the judgment of constitution bench in Indira sawhney's case and judgment dt.8. 10/2013 of Hon'ble apex court in C.A. No.9096/2013 and the judgment of Your lordships dt. 27.11.2015 in WPPIL No. 1470/2007.

10.2 Issue a writ of Mandamus of any other writ order or direction thereby directing the respondents particularly respondents No.1 & 2 for issuing fresh advertisements for the posts of teachers (Pay matrix level-8) and Assistant Teachers (Pay Matrix Level-06) providing for proper reservation to the extent of 2% each to visually challenged(VC), hearing impaired(HI) and locomotor disabled and cerebral Palsy(LC) and 1% for the fourth category of disability viz multiple challenged(MC) separately in terms of office memorandums dt.29.8.2018 followed by 5.3.2019 to comply with the provisions of Section 34 of RPWD Act 2016 read with rule 11 of RPWD rules 2017 alongwith backlog of vacancies

for each category of disability worked out in terms of the said office memorandums of respondent No.4 without linking it with any community/ category as a separate class of vacancies and take the selection process further on that basis based on the results of the examination already conducted by respondent No.3 or in the alternative undertake fresh selection process after the issuance of fresh advertisement as prayed for by the petitioners.

10.3 Grant any other relief as your lordship may deem fit."

4. The facts, as pleaded in the present bunch of petitions, reveal that the petitioners in both the writ petitions are persons with disabilities, primarily visually impaired candidates, who claim entitlement to the constitutional and statutory benefits of reservation in public employment under the provisions of the Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995 and the Rights of Persons with Disabilities Act, 2016. The petitioners assert that being citizens of India and persons suffering from benchmark disabilities, they are entitled to equal opportunity in public employment and to the benefit of horizontal reservation as contemplated under the statutory framework governing

reservation for persons with disabilities. The petitioners have placed on record their disability certificates demonstrating that they belong to the category of visually challenged/blind persons. The petitioners have pleaded that Section 33 of the Act of 1995 mandated every appropriate Government to reserve not less than 3% of vacancies in every establishment for persons with disabilities, with 1% each earmarked for blindness and low vision, hearing impairment, and locomotor disability or cerebral palsy. According to the petitioners, despite the statutory mandate, the State authorities failed to effectively implement reservation for persons with disabilities, compelling the National Federation of the Blind to institute W.P.(PIL) No.1470/2007 before this Court seeking implementation of reservation policy and filling up of backlog vacancies meant for visually impaired candidates and other disabled persons.

5. During pendency of the said public interest litigation, the Hon'ble Supreme Court in **Union of India vs. National Federation of the Blind & Others decided on 08.10.2013 in Civil Appeal No.9096/2013** authoritatively interpreted Section 33 of the Act of 1995 and held that reservation for persons with disabilities has to be computed on the basis of the total number of vacancies in the cadre strength and not merely against identified posts. The Apex Court further clarified that reservation for disabled persons is vacancy-based and horizontal in nature and directed all Governments and establishments to implement the reservation

policy strictly in accordance with the statutory mandate. The Supreme Court also directed the Governments to compute backlog vacancies, identify posts suitable for disabled persons, and undertake special recruitment drives for filling up reserved vacancies. Pursuant to the aforesaid judgment and directions issued in W.P.(PIL) No.1470/2007, the State of Chhattisgarh issued various office memorandums dated 27.09.2014, 17.11.2014, 29.08.2018 and 05.03.2019 laying down the procedure for implementation of reservation for persons with disabilities. Under the said policy framework, reservation for persons with disabilities was enhanced from 6% to 7%, with 2% each earmarked for blindness and low vision, hearing impairment, and locomotor disability/cerebral palsy and 1% for other benchmark disabilities. The State also prescribed maintenance of separate vacancy-based rosters for implementation of horizontal reservation for persons with disabilities and clarified that such reservation was distinct from vertical reservation meant for SC/ST/OBC categories. The State further undertook before this Court in the earlier PIL proceedings to complete a special recruitment drive to fill backlog vacancies for disabled candidates. The petitioners have contended that despite the aforesaid statutory scheme, judicial pronouncements and policy decisions, the respondent authorities issued advertisements dated 04.05.2023 for recruitment to the posts of Teacher E-Cadre and Teacher T-Cadre, Non-Gazetted Group-C, as well as Assistant

Teacher E-Cadre and T-Cadre posts in various divisions including Sarguja and Bastar, in complete violation of the provisions governing reservation for persons with disabilities. According to the petitioners, the impugned advertisements notified thousands of vacancies in different cadres but failed to provide separate and independent reservation for persons with disabilities as required under the RPWD Act, 2016 and Rule 11 of the RPWD Rules, 2017. It is specifically alleged that the vacancies reserved for disabled persons were merged with vertical categories such as SC/ST/OBC and Unreserved instead of maintaining a distinct horizontal reservation roster. The petitioners have further pleaded that the respondents failed to provide disability-category-wise bifurcation of vacancies for visually challenged, hearing impaired, locomotor disabled and multiple disability candidates, despite the clear mandate of the office memorandums and statutory provisions. It is their contention that the total number of vacancies reserved for disabled persons was also substantially lower than the mandated 7% reservation. Detailed figures have been furnished in the petitions to demonstrate that against the total notified vacancies, the number of posts reserved for disabled candidates fell short of the prescribed quota and no separate allocation was made category-wise for blindness and low vision or other disabilities. It has also been averred that the petitioners, being eligible candidates, participated in the recruitment examination conducted by the respondents and their results were

declared on 02.07.2023. However, according to the petitioners, even at the stage of declaration of results and counselling, the respondents illegally linked the reservation for persons with disabilities with the social category of the candidates such as OBC/SC/ST instead of treating disability reservation as a separate horizontal category. The petitioners contend that though they had applied under the disability quota as visually impaired candidates, their candidature was treated only within the OBC category, thereby depriving them of the benefit of reservation specifically earmarked for visually challenged candidates.

6. The grievance of the petitioners further intensified after issuance of counselling notification dated 12.08.2023 wherein the respondents allegedly prepared the counselling cut-off and merit list by merging disabled candidates with their respective vertical social categories instead of maintaining a separate merit list for each disability category. According to the petitioners, separate rank-wise merit lists ought to have been prepared for visually challenged candidates, hearing impaired candidates, orthopedically handicapped candidates and multiple disability candidates in accordance with the reservation percentage prescribed under the RPWD Act, 2016 and the State Government circulars. The petitioners assert that due to such illegal merging of reservations, several visually impaired candidates including the petitioners stood excluded from consideration despite securing eligibility and merit within the disability quota. The petitioners

have also referred to recruitment processes conducted by other departments and agencies including the Directorate of Women and Child Development, Chhattisgarh Public Service Commission and Directorate of Employment and Training wherein separate reservation and selection procedures were followed for persons with disabilities in accordance with law. According to the petitioners, the deviation adopted in the present teacher recruitment process is arbitrary, discriminatory and contrary to the consistent policy framework adopted by the State itself. It is further pleaded that the petitioners submitted detailed representations before the authorities requesting implementation of proper horizontal reservation for persons with disabilities and seeking separate disability-category-wise reservation and counselling. However, despite such representations, no corrective action was taken by the respondents, compelling the petitioners to approach this Court by filing the present writ petitions challenging the advertisements, counselling process and reservation mechanism adopted by the respondents in the recruitment process.

7. Learned counsel appearing for the petitioners submits that the impugned advertisements dated 04.05.2023 issued for recruitment to the posts of Teacher E-Cadre and T-Cadre, Non-Gazetted Group-C (Pay Matrix Level-8), Assistant Teacher E-Cadre and T-Cadre, Non-Gazetted Group-C (Pay Matrix Level-6), along with the subsequent notification dated 12.08.2023 issued

for online counselling, are ex facie arbitrary, illegal and contrary to the statutory mandate contained under the Rights of Persons with Disabilities Act, 2016 and the Rules framed thereunder. It is contended that the entire recruitment process has been conducted in utter disregard to the constitutional and statutory rights guaranteed to persons with benchmark disabilities and, therefore, the impugned advertisements as well as the consequential counselling notification deserve to be quashed to the extent they violate the scheme of reservation prescribed for persons with disabilities. Learned counsel for the petitioners further submits that the respondents have fundamentally erred in linking reservation meant for persons with disabilities with vertical or community-based reservation at the threshold stage itself, i.e., prior to preparation of the merit list and selection of candidates. It is argued that reservation for persons with disabilities is horizontal in nature and constitutes a separate class of reservation under Article 16(1) of the Constitution of India, distinct and independent from vertical reservations provided to Scheduled Castes, Scheduled Tribes and Other Backward Classes under Article 16(4). By clubbing disability reservation with caste/community reservation and requiring disabled candidates to compete within their respective vertical categories, the respondents have acted in direct contravention of the law laid down by the Constitution Bench of the Hon’ble Supreme Court in **Indra Sawhney v. Union of India** as well as the judgment rendered in **Union of India v.**

National Federation of the Blind, reported in (2013) 10 SCC 772. It is vehemently argued that the Hon'ble Supreme Court in National Federation of the Blind has categorically held that reservation for persons with disabilities is horizontal and that candidates selected under the disability quota are thereafter to be adjusted in their respective social categories. Learned counsel submits that the respondents have reversed the legally permissible process by first compartmentalizing disabled candidates into caste-based categories and thereafter restricting their consideration within such categories. According to learned counsel, such an approach completely defeats the very object of the beneficial legislation enacted for protection and advancement of rights of persons with disabilities. Learned counsel further contends that the recruitment process adopted by the respondents is also contrary to Section 34 of the Rights of Persons with Disabilities Act, 2016 read with Rule 11 of the Rights of Persons with Disabilities Rules, 2017. It is submitted that Section 34 statutorily mandates reservation to the extent of 4% under the original enactment and subsequently 5% / 7% as applicable under the State policy and notifications, to be distributed distinctly amongst different categories of benchmark disabilities. However, the respondents have neither properly identified nor distributed the vacancies category-wise in accordance with the statutory prescription. It is submitted that the respondents were under a mandatory obligation to earmark

separate vacancies for blind and low vision candidates, deaf and hard of hearing candidates, locomotor disability including cerebral palsy candidates, and multiple disability categories in the proportion prescribed under the Rules and Office Memorandums, but the same has not been done. Learned counsel submits that the respondents have illegally adopted a post-based and compartmentalized roster for implementing reservation in favour of persons with disabilities, whereas the law declared by the Hon'ble Supreme Court clearly mandates implementation through a vacancy-based roster. It is argued that disability reservation cannot be treated at par with vertical reservation and cannot be confined to compartmentalized posts within social categories. Reliance is placed upon Rule 11 of the RPWD Rules, 2017 and various Office Memorandums dated 27.09.2014, 07.11.2014, 29.08.2018 and 05.03.2019, which specifically clarify that reservation for persons with disabilities constitutes a separate class and is required to be implemented horizontally across all categories. Learned counsel further submits that the impugned advertisements are contrary to the very terms and conditions contained therein. It is argued that the advertisements initially indicated separate reservation for persons with disabilities; however, while issuing the counselling notification dated 12.08.2023, the respondents merged disability reservation with other category reservations and thereby materially altered the selection methodology midway through the recruitment process.

According to learned counsel, changing the criteria after commencement of the recruitment process amounts to changing the “rules of the game” after the game has begun, which is impermissible in law and contrary to the settled principles consistently laid down by the Hon’ble Supreme Court. It is also argued that the respondents themselves had adopted the correct procedure during the earlier recruitment process conducted in the year 2019, wherein reservation for persons with disabilities was implemented horizontally and separate vacancies were maintained for benchmark disability candidates as a distinct class. Learned counsel submits that there is absolutely no justification for deviating from the same procedure in the present recruitment process. It is contended that the respondents have taken contradictory stands in their pleadings, inasmuch as they admit that the 2019 recruitment was conducted by maintaining disability reservation as a separate horizontal class, yet seek to justify the contrary methodology adopted in the impugned recruitment. Learned counsel further submits that the respondents have wrongly relied upon Rule 28(5) of the Chhattisgarh Rights of Persons with Disabilities Rules, 2019 to justify compartmentalized reservation. It is argued that the said State Rule, insofar as it is interpreted to permit compartmentalization of disability reservation, is inconsistent with Rule 11(4) of the Central Rules framed under the Rights of Persons with Disabilities Act, 2016. Since the parent legislation as well as the Central Rules clearly

provide that reservation for persons with disabilities is horizontal and vacancies are to be maintained as a separate class, any inconsistent provision in the State Rules would be repugnant and unenforceable. Learned counsel submits that in view of Article 254 of the Constitution, the Central legislation and Rules would prevail over inconsistent State provisions. Reliance in this regard is placed upon the judgment of the Hon'ble Supreme Court in **Gambhirdan K. Gadhvi v. State of Gujarat, reported in (2022) 5 SCC 179**. Learned counsel further argues that the respondents have failed to provide the full extent of reservation mandated for persons with disabilities. Referring to the additional reply filed by the State, it is submitted that the respondents have attempted to justify the calculation of vacancies by treating unfilled vacancies from the earlier recruitment as backlog vacancies. However, according to learned counsel, the explanation furnished by the respondents is wholly unsupported by the impugned advertisements themselves, which do not disclose any separate bifurcation between newly sanctioned posts and backlog vacancies. It is contended that even assuming certain backlog vacancies existed, the respondents were still legally bound to provide fresh reservation to the extent of 7% against the total vacancies advertised in the current recruitment in addition to carrying forward backlog vacancies from earlier recruitments. Learned counsel submits that the respondents have also failed to prepare separate and independent merit lists for each category of

disability. It is argued that separate merit lists ought to have been prepared for visually impaired candidates, hearing impaired candidates, locomotor disability/cerebral palsy candidates and multiple disability candidates in accordance with the statutory distribution prescribed under the Office Memorandums dated 29.08.2018 and 05.03.2019. Instead, the respondents have prepared a consolidated selection process by linking disabled candidates to their respective vertical categories and women reservation, thereby depriving benchmark disability candidates of their legitimate statutory entitlement. It is further contended that the respondents have not prescribed separate cut-off marks and separate standards for candidates with benchmark disabilities. Learned counsel places heavy reliance upon the recent judgment of the Hon'ble Supreme Court rendered in **Suo Motu Writ Petition (Civil) No. 2/2024 reported in 2025 SCC OnLine SC 481**, wherein the Apex Court reiterated that persons with disabilities constitute a separate class and are entitled to separate qualifying standards and relaxation similar to those granted to Scheduled Castes and Scheduled Tribes. It is submitted that the Hon'ble Supreme Court has categorically recognized that disability-based disadvantage is a distinct constitutional concern requiring affirmative action measures, including separate cut-offs and qualifying marks. Learned counsel also submits that the earlier dismissal of the writ petitions by the learned Single Judge on the ground of participation in the recruitment process has

already been set aside by the Hon’ble Division Bench in Writ Appeal No.494/2025 and connected matters. It is pointed out that the Division Bench specifically held that the writ petitions could not have been dismissed merely because the petitioners participated in the selection process, particularly when their statutory rights under the RPWD Act and the judgments of the Hon’ble Supreme Court were allegedly being violated. The Division Bench further directed reconsideration of the matter in light of the decision rendered by the Hon’ble Supreme Court in the suo motu proceedings relating to rights of persons with disabilities. Learned counsel further submits that the interim order passed earlier by this Court directing that all recruitments made during pendency of the writ petitions shall remain subject to the final outcome of the petitions is still operating and, therefore, no prejudice would be caused to the respondents if the impugned process is corrected in accordance with law. It is argued that the petitioners are not seeking any extraordinary indulgence but merely enforcement of statutory and constitutional rights already recognized by the Parliament and repeatedly affirmed by the Hon’ble Supreme Court. Learned counsel therefore submits that the impugned advertisements dated 04.05.2023 and the consequential counselling notification dated 12.08.2023 are discriminatory, arbitrary, unconstitutional and contrary to the Rights of Persons with Disabilities Act, 2016, the Rules framed thereunder, the Office Memorandums governing implementation

of disability reservation, and the law laid down by the Hon'ble Supreme Court. It is thus prayed that the impugned recruitment process be quashed to the extent it violates the statutory scheme of reservation for persons with disabilities and the respondents be directed to undertake the selection process afresh by properly implementing horizontal reservation for persons with benchmark disabilities in accordance with law.

8. Learned State counsel, opposing the submissions advanced on behalf of the petitioners, vehemently contends that the present batch of writ petitions is wholly misconceived, devoid of merit and liable to be dismissed in limine, as the recruitment process impugned herein has been conducted strictly in accordance with the provisions of the Rights of Persons with Disabilities Act, 2016, the Rules framed thereunder, and the policy decisions of the State Government governing reservation for persons with benchmark disabilities. It is submitted that the petitioners have proceeded on an erroneous understanding of the statutory framework relating to horizontal reservation and have deliberately ignored the distinction between "horizontal reservation" and "compartment-wise allocation" as specifically contemplated under the Chhattisgarh Rights of Persons with Disabilities Rules, 2019. Learned State counsel submits that the entire challenge mounted by the petitioners rests upon a misinterpretation of Rule 11 of the Rights of Persons with Disabilities Rules, 2017 and Rule 28 of the Chhattisgarh Rights of Persons with Disabilities Rules, 2019.

Referring to Rule 11(4) of the Central Rules and Rule 28(5) of the State Rules, it is argued that while reservation for persons with disabilities is undoubtedly horizontal in nature, the State Rules expressly provide for “compartment-wise reservation” for persons with benchmark disabilities as a separate category, and therefore the methodology adopted by the respondents in distributing reservation category-wise and division-wise is fully protected by the statutory framework itself. It is submitted that the petitioners have selectively relied upon the expression “horizontal reservation” while completely overlooking the expression “compartment-wise reservation” expressly incorporated under the State Rules of 2019. Learned State counsel further submits that the respondents have scrupulously applied the prescribed 7% reservation in favour of persons with benchmark disabilities while issuing the impugned advertisements dated 04.05.2023. It is contended that the allegation that the respondents failed to provide reservation in accordance with law is factually incorrect and contrary to the records placed before this Court.

9. Elaborating the factual position, learned counsel submits that for recruitment to the posts of Teachers under E-Cadre and T-Cadre, total posts reserved for persons with disabilities were specifically earmarked and notified in the advertisements themselves. Similarly, for recruitment to the posts of Assistant Teachers under E-Cadre and T-Cadre, separate reservation was provided for differently-abled candidates in accordance with the 7%

reservation policy. Learned State counsel submits that the reservation was not only provided quantitatively but was also further bifurcated disability-wise in accordance with the Government Circular dated 29.08.2018, whereby 2% reservation each was earmarked for Blind and Low Vision (VC), Hearing Impairment (HI), and Locomotor Disability (OR), and 1% reservation for Multiple Disabilities (MC). It is argued that the petitioners' assertion that no disability-wise distribution was made is therefore entirely incorrect and contrary to the actual data reflected in the advertisements and additional affidavits filed by the State. Learned State counsel further contends that the State Government has consciously adopted compartment-wise implementation of horizontal reservation in order to ensure equitable distribution of reservation benefits across all social categories and divisions. It is submitted that the recruitment in question involved large-scale appointments across multiple cadres, divisions and social categories, and therefore compartment-wise distribution was necessary to maintain the balance contemplated under the reservation policy. According to learned counsel, the petitioners are wrongly attempting to project that horizontal reservation requires complete elimination of social-category bifurcation, whereas in reality horizontal reservation operates within the broader framework of vertical reservation and adjustment is necessarily undertaken category-wise. It is argued that the respondents have not diluted the horizontal nature of

disability reservation but have merely implemented the same in a compartment-wise manner as expressly permissible under Rule 28(5) of the State Rules, 2019. Learned State counsel further submits that the respondents have correctly applied the reservation roster by taking into account backlog vacancies carried forward from the earlier recruitment process conducted in the year 2019. It is argued that during the recruitment drive of 2019, although substantial vacancies were advertised for differently-abled candidates, a large number of posts remained unfilled owing to non-availability of suitable candidates, ineligibility of candidates who appeared, or non-participation of candidates during document verification and counselling. Learned counsel submits that as many as 2050 posts under the Teacher cadre remained unfilled from the earlier recruitment process, which also included 52 posts reserved for differently-abled candidates. These vacancies were thereafter validly treated as backlog vacancies and carried forward in accordance with law after obtaining necessary approval from the State Cabinet. It is contended that while undertaking the fresh recruitment process in 2023, the State Government advertised both the newly sanctioned posts as well as the backlog vacancies, and reservation for differently-abled candidates was calculated accordingly. Learned counsel submits that the respondents were not required to once again apply fresh 7% reservation upon backlog vacancies which had already been reserved for differently-abled candidates in the earlier recruitment

process. According to learned counsel, the petitioners are seeking double reservation upon the same backlog vacancies, which is neither contemplated under the statute nor permissible in law.

10. Learned State counsel further submits that the figures furnished by the respondents in their additional reply clearly establish that proper reservation has been maintained. It is pointed out that from the newly sanctioned posts of Teachers under E-Cadre and T-Cadre, reservation to the extent of 7% was separately computed and earmarked for differently-abled candidates. Similarly, backlog vacancies reserved for differently-abled candidates from the earlier recruitment process were added to the fresh vacancies and thereafter included in the impugned advertisements. The same methodology was adopted in respect of Assistant Teacher recruitment as well. It is therefore argued that the total number of posts reserved for differently-abled candidates in the impugned recruitment process is fully consistent with the statutory requirement of 7% reservation and no prejudice whatsoever has been caused to the petitioners. Learned State counsel further argues that the petitioners are attempting to challenge the recruitment process despite the fact that they themselves participated in the examination process without objection and only after finding themselves unsuccessful have approached this Court by questioning the methodology of selection. It is contended that the petitioners were fully aware of the terms and conditions of the advertisements, the mode of implementation of reservation, the

classification of vacancies and the counselling procedure, yet they voluntarily participated in the recruitment process. Having taken a calculated chance of selection, the petitioners are estopped from challenging the recruitment process after being declared unsuccessful. It is submitted that the law is well settled that a candidate who participates in a selection process with full knowledge of the criteria cannot subsequently assail the same merely because the outcome is unfavourable. Learned State counsel further submits that the grievance raised by the petitioners is in fact academic and hypothetical in nature, inasmuch as the petitioners did not secure marks sufficient to come within the zone of consideration even under the applicable disability reservation. Referring to the rank position and cut-off marks, learned counsel submits that petitioner Nos. 1 and 2 belonging to the OBC-VC category secured ranks substantially below the prescribed cut-off for the posts in question and therefore were rightly not called for document verification and counselling. It is further submitted that petitioner No. 3 has already been selected and appointed on the post of Assistant Teacher and insofar as the post of Teacher is concerned, his rank also remained below the cut-off prescribed for the said category. Learned counsel therefore contends that even assuming, without admitting, that any procedural irregularity existed, no prejudice has been caused to the petitioners since they were otherwise ineligible for selection on merits. It is argued that writ jurisdiction

under Article 226 of the Constitution cannot be invoked for adjudication of abstract or academic grievances where no enforceable legal injury is demonstrated. Learned State counsel also refutes the contention of the petitioners that the respondents altered the “rules of the game” after commencement of the recruitment process. It is submitted that the advertisements themselves clearly contemplated category-wise and disability-wise reservation and there was no subsequent change in the criteria during counselling or selection. According to learned counsel, the counselling notification dated 12.08.2023 merely operationalized the reservation structure already reflected in the advertisements and no fresh criteria or altered methodology was introduced at a later stage. It is argued that the petitioners are attempting to misconstrue the counselling procedure as a change in policy, whereas in reality the same was only a continuation of the recruitment framework already notified in the advertisements. Learned State counsel further submits that the reliance placed by the petitioners upon the judgment rendered in **National Federation of the Blind (Supra)** is wholly misplaced and distinguishable on facts. It is argued that the respondents are not disputing the principle that reservation for persons with disabilities is horizontal in nature. Rather, the respondents have fully implemented horizontal reservation while simultaneously adopting compartment-wise allocation as specifically authorized under the State Rules of 2019. Learned counsel submits that the judgments

relied upon by the petitioners nowhere prohibit category-wise distribution or compartment-wise adjustment of disability reservation and therefore the petitioners cannot derive any assistance from the aforesaid judgments. It is further submitted that the challenge to Rule 28(5) of the Chhattisgarh Rules, 2019 on the ground of alleged repugnancy is also misconceived, inasmuch as the State Rule merely supplements the Central framework by prescribing the manner of implementation of horizontal reservation and does not in any manner dilute or override the provisions of the parent enactment or the Central Rules.

11. Learned State counsel additionally contends that the petitioners have failed to challenge the constitutional validity of Rule 28(5) of the Chhattisgarh Rights of Persons with Disabilities Rules, 2019 by making proper pleadings or by laying foundational facts necessary for such challenge. In absence of any substantive challenge to the statutory provision itself, the petitioners cannot seek to indirectly invalidate the recruitment process conducted strictly in accordance with the said Rules. It is submitted that the State action enjoys a presumption of legality and constitutionality unless specifically struck down by a competent Court. Learned State counsel further argues that the respondents have acted bona fide and in larger public interest while conducting a massive recruitment process involving thousands of vacancies in the education department. Interference with the recruitment process

at this advanced stage, after completion of examination, preparation of merit lists and issuance of counselling notifications, would seriously prejudice public administration and disrupt appointments already made in educational institutions across the State. It is submitted that this Court, while exercising writ jurisdiction, ought not interfere with an ongoing or substantially completed recruitment process unless a glaring illegality causing manifest injustice is demonstrated, which is conspicuously absent in the present case. Learned State counsel therefore submits that the respondents have correctly implemented the 7% reservation policy for persons with benchmark disabilities in accordance with the Rights of Persons with Disabilities Act, 2016, the Central Rules of 2017, the Chhattisgarh Rules of 2019, and the Government Circular dated 29.08.2018. It is argued that the petitioners have failed to establish any arbitrariness, discrimination, illegality or violation of statutory provisions in the impugned recruitment process. Accordingly, learned State counsel prays that the present batch of writ petitions, being devoid of merit and substance, deserves to be dismissed.

12. Learned counsel appearing on behalf of respondent - Chhattisgarh Professional Examination Board (CGVYAPAM), opposing the submissions advanced on behalf of the petitioners, submits that the present writ petitions, insofar as they seek to challenge the recruitment process conducted by CGVYAPAM, are wholly misconceived and liable to be dismissed against the

answering respondent, as CGVYAPAM has merely acted as an examining and recruiting agency entrusted with the limited function of conducting the written examination and declaring the results strictly in accordance with the requisition, reservation matrix and instructions supplied by the State Government and the Directorate of Public Instructions. Learned counsel for CGVYAPAM submits that the impugned advertisements dated 04.05.2023 relating to recruitment on the posts of Teacher and Assistant Teacher under E-Cadre and T-Cadre were issued by the competent department of the State Government and the reservation structure, category-wise distribution of vacancies, disability-wise allocation and roster details were determined entirely by the State authorities. It is contended that CGVYAPAM neither framed the reservation policy nor exercised any authority with respect to determination of horizontal reservation, compartment-wise allocation, backlog vacancies or counselling methodology. The role of CGVYAPAM was confined only to conducting the competitive examination in a fair and transparent manner and thereafter preparing and publishing the results on the basis of data and criteria furnished by the requisitioning department. Learned counsel further submits that the allegations made by the petitioners regarding improper implementation of reservation for persons with benchmark disabilities are matters falling exclusively within the domain of the State Government and the appointing authority, and no cause of action whatsoever has

arisen against CGVYAPAM. It is argued that the Professional Examination Board is not the authority responsible either for preparation of reservation rosters or for allocation of posts category-wise. Similarly, the counselling process, document verification, preparation of final selection lists and issuance of appointment orders are all undertaken by the concerned department of the State Government and not by CGVYAPAM. Learned counsel for CGVYAPAM further submits that the written examination was conducted uniformly for all eligible candidates in accordance with the terms and conditions prescribed in the advertisements and no allegation of irregularity, malpractice, arbitrariness or procedural impropriety has been raised against the conduct of the examination itself. It is submitted that all candidates, including the petitioners and interveners, were permitted to participate in the examination process under the categories indicated in their respective applications and the results were prepared strictly on the basis of marks secured by the candidates in the examination conducted by CGVYAPAM. Learned counsel further contends that after declaration of the examination results, CGVYAPAM transmitted the merit data and category-wise information to the concerned department for the purposes of counselling and further selection process. It is argued that the notification dated 12.08.2023 relating to online counselling and document verification was not issued by CGVYAPAM but by the Directorate of Public

Instructions/competent authority of the School Education Department. Therefore, the challenge made by the petitioners to the counselling notification, merit categorization and reservation implementation does not involve any act attributable to the answering respondent. Learned counsel also submits that the petitioners have attempted to unnecessarily implead CGVYAPAM despite the fact that no relief of substantive nature can be granted against the examining body. It is argued that even assuming the petitioners succeed in their challenge regarding implementation of reservation policy, any consequential directions would necessarily have to be issued against the State Government and the appointing authorities and not against CGVYAPAM, whose role in the recruitment process already stands concluded after declaration of the examination results. Learned counsel for CGVYAPAM therefore submits that the answering respondent has acted strictly in accordance with the requisition and instructions received from the State Government and has discharged its statutory obligations fairly, transparently and without any arbitrariness. It is thus prayed that no adverse order be passed against respondent - CGVYAPAM and the writ petitions, insofar as they relate to the answering respondent, deserve to be dismissed.

13. Having heard learned counsel for the parties at length, having perused the pleadings, documents brought on record, the statutory framework governing reservation for persons with benchmark disabilities and the judgments relied upon by the

respective parties, this Court is of the considered opinion that the controversy involved in the present matters strikes at the very root of substantive equality guaranteed to persons with disabilities under the Constitution of India and the statutory protections engrafted under the Rights of Persons with Disabilities Act, 2016.

14. The issue involved is not merely one relating to computation of vacancies or preparation of merit lists; rather, it concerns the extent to which constitutional guarantees of equal opportunity in public employment are meaningfully implemented for a historically disadvantaged and marginalized class of citizens.

15. At the outset, it deserves to be noticed that the earlier round of litigation arising out of the present recruitment process had culminated in disposal of the writ petitions by this Court primarily on the ground that the petitioners, having participated in the recruitment process, could not subsequently challenge the same. However, the Hon'ble Division Bench in Writ Appeal No. 459/2025 and connected matters set aside the said order and remitted the matters back for fresh adjudication on merits, specifically directing reconsideration of the controversy in light of the statutory rights flowing from the RPWD Act, 2016 and the subsequent pronouncements of the Hon'ble Supreme Court concerning rights of persons with disabilities. Thus, the controversy now requires adjudication on the touchstone of constitutional principles, statutory mandate and binding precedents governing reservation for persons with benchmark

disabilities.

16. The foundational issue which falls for consideration before this Court is whether the respondents were justified in implementing reservation for persons with benchmark disabilities by linking and compartmentalizing such reservation with vertical social-category reservation at the threshold stage of selection and counselling.

17. The law relating to horizontal reservation stands authoritatively settled by the Constitution Bench judgment of the Hon'ble Supreme Court in **Indra Sawhney v. Union of India**, reported in **1992 Supp (3) SCC 217** wherein the Apex Court lucidly explained the distinction between vertical reservation under Article 16(4) and horizontal reservation under Article 16(1). The Constitution Bench held that reservations for categories such as women, physically handicapped and other special classes operate horizontally cutting across vertical categories and such candidates are first selected on the basis of the special reservation and thereafter adjusted against their respective social categories. The observations contained in paragraph 812 of the judgment clearly recognize that horizontal reservation constitutes a distinct class operating across vertical reservations which is quoted hereunder :

> *"812. We are also of the opinion that this rule of 50% applies only to reservations in favour of backward classes made under Article 16(4). A little clarification is in order at this juncture : all reservations are not of the*

same nature. There are two types of reservations, which may, for the sake of convenience, be referred to as 'vertical reservations' and 'horizontal reservations'. The reservations in favour of Scheduled Castes, Scheduled Tribes and other backward classes [under Article 16(4)] may be called vertical reservations whereas reservations in favour of physically handicapped [under clause (1) of Article 16] can be referred to as horizontal reservations. Horizontal reservations cut across the vertical reservations — what is called interlocking reservations. To be more precise, suppose 3% of the vacancies are reserved in favour of physically handicapped persons; this would be a reservation relatable to clause (1) of Article 16. The persons selected against this quota will be placed in the appropriate category; if he belongs to SC category he will be placed in that quota by making necessary adjustments; similarly, if he belongs to open competition (OC) category, he will be placed in that category by making necessary adjustments. Even after providing for these horizontal reservations, the percentage of reservations in favour of backward class of citizens remains — and should remain — the same. This is

how these reservations are worked out in several States and there is no reason not to continue that procedure."

18. The said principle has consistently been reiterated in subsequent judgments including **Rajesh Kumar Daria v. Rajasthan Public Service Commission**, reported in **(2007) 8 SCC 785**, wherein the Hon'ble Supreme Court in paragraphs 7 to 9 elaborately explained the manner in which horizontal reservation is to be implemented and categorically held that adjustment against vertical categories can occur only after candidates selected under horizontal reservation are identified independently. paragraphs 7 to 9 are quoted hereunder for ready reference :

7. A provision for women made under Article 15(3), in respect of employment, is a special reservation as contrasted from the social reservation under Article 16(4). The method of implementing special reservation, which is a horizontal reservation, cutting across vertical reservations, was explained by this Court in Anil Kumar Gupta v. State of U.P. [(1995) 5 SCC 173] thus: (SCC p. 185, para 18)

"The proper and correct course is to first fill up the OC quota (50%) on the basis of merit; then fill up each of the social reservation

quotas i.e. SC, ST and BC; the third step would be to find out how many candidates belonging to special reservations have been selected on the above basis. If the quota fixed for horizontal reservations is already satisfied—in case it is an overall horizontal reservation—no further question arises. But if it is not so satisfied, the requisite number of special reservation candidates shall have to be taken and adjusted/accommodated against their respective social reservation categories by deleting the corresponding number of candidates therefrom. (If, however, it is a case of compartmentalised horizontal reservation, then the process of verification and adjustment/accommodation as stated above should be applied separately to each of the vertical reservations. In such a case, the reservation of fifteen per cent in favour of special categories, overall, may be satisfied or may not be satisfied.)"

(emphasis supplied)

8. *We may also refer to two related aspects before considering the facts of*

this case. The first is about the description of horizontal reservation. For example, if there are 200 vacancies and 15% is the vertical reservation for SC and 30% is the horizontal reservation for women, the proper description of the number of posts reserved for SC, should be: "For SC: 30 posts, of which 9 posts are for women." We find that many a time this is wrongly described thus: "For SC: 21 posts for men and 9 posts for women, in all 30 posts." Obviously, there is, and there can be, no reservation category of "male" or "men".

9. *The second relates to the difference between the nature of vertical reservation and horizontal reservation. Social reservations in favour of SC, ST and OBC under Article 16(4) are "vertical reservations". Special reservations in favour of physically handicapped, women, etc., under Articles 16(1) or 15(3) are "horizontal reservations". Where a vertical reservation is made in favour of a Backward Class under Article 16(4), the candidates belonging to such Backward Class, may compete for non-reserved posts and if they are appointed to the non-reserved posts on their own merit, their number will not be counted against*

the quota reserved for respective Backward Class. Therefore, if the number of SC candidates, who by their own merit, get selected to open competition vacancies, equals or even exceeds the percentage of posts reserved for SC candidates, it cannot be said that the reservation quota for SCs has been filled. The entire reservation quota will be intact and available in addition to those selected under open competition category. (Vide Indra Sawhney [1992 Supp (3) SCC 217] , Union of India v. Virpal Singh Chauhan [(1995) 6 SCC 684] and Ritesh R. Sah v. Dr. Y.L. Yamul [(1996) 3 SCC 253].) But the aforesaid principle applicable to vertical (social) reservations will not apply to horizontal (special) reservations. Where a special reservation for women is provided within the social reservation for Scheduled Castes, the proper procedure is first to fill up the quota for Scheduled Castes in order of merit and then find out the number of candidates among them who belong to the special reservation group of "Scheduled Caste women". If the number of women in such list is equal to or more than the number of special reservation quota, then there is no need for further selection towards the special

reservation quota. Only if there is any shortfall, the requisite number of Scheduled Caste women shall have to be taken by deleting the corresponding number of candidates from the bottom of the list relating to Scheduled Castes. To this extent, horizontal (special) reservation differs from vertical (social) reservation. Thus women selected on merit within the vertical reservation quota will be counted against the horizontal reservation for women. Let us illustrate by an example: If 19 posts are reserved for SCs (of which the quota for women is four), 19 SC candidates shall have to be first listed in accordance with merit, from out of the successful eligible candidates. If such list of 19 candidates contains four SC woman candidates, then there is no need to disturb the list by including any further SC woman candidate. On the other hand, if the list of 19 SC candidates contains only two woman candidates, then the next two SC woman candidates in accordance with merit, will have to be included in the list and corresponding number of candidates from the bottom of such list shall have to be deleted, so as to ensure that the final 19 selected SC candidates contain four woman SC candidates. (But if the list of 19 SC

> *candidates contains more than four woman candidates, selected on own merit, all of them will continue in the list and there is no question of deleting the excess woman candidates on the ground that "SC women" have been selected in excess of the prescribed internal quota of four.)"*

19. In the present case, however, the respondents have adopted an entirely contrary methodology. The material placed on record clearly demonstrates that visually impaired candidates, hearing impaired candidates and candidates suffering from locomotor disability were not treated as a separate horizontal class at the stage of preparation of counselling lists and merit consideration. Instead, the respondents first compartmentalized such candidates into their respective social categories such as SC/ST/OBC/UR and thereafter restricted their zone of consideration within those vertical compartments. Such a procedure fundamentally defeats the concept of horizontal reservation itself. Once reservation for persons with benchmark disabilities is recognized as a horizontal reservation, the same cannot be subordinated to vertical social classification at the threshold stage.

20. This Court is further of the opinion that the approach adopted by the respondents is in direct conflict with the authoritative pronouncement rendered by the Hon'ble Supreme Court in **Union of India v. National Federation of the Blind,** reported in **(2013)**

10 SCC 772 . In the said judgment, while interpreting Section 33 of the Persons with Disabilities Act, 1995, the Apex Court categorically held that reservation for persons with disabilities is a special reservation intended to ensure effective participation of disabled persons in public employment and that such reservation is to be computed on the basis of total cadre strength and not merely against identified posts.

21. In paragraphs 51, 52 and 54 of the said judgment, the Hon'ble Supreme Court unequivocally held that the statutory mandate relating to reservation for persons with disabilities must receive liberal and purposive interpretation consistent with the object of social justice and equality. The Apex Court further directed all Governments to identify backlog vacancies, maintain proper reservation rosters and undertake special recruitment drives for filling up vacancies reserved for disabled persons.

> ***"51****. The Union of India, the State Governments as well as the Union Territories have a categorical obligation under the Constitution of India and under various international treaties relating to human rights in general and treaties for disabled persons in particular, to protect the rights of disabled persons. Even though the Act was enacted way back in 1995, the disabled people have failed to get required benefit until today.*

> ***52***. *Thus, after thoughtful consideration, we are of the view that the computation of reservation for persons with disabilities has to be computed in case of Group A, B, C and D posts in an identical manner viz. "computing 3% reservation on total number of vacancies in the cadre strength" which is the intention of the legislature. Accordingly, certain clauses in the OM dated 29-12-2005, which are contrary to the above reasoning are struck down and we direct the appropriate Government to issue new office memorandum(s) consistent with the decision rendered by this Court.*
>
> *xxx xxx xxx*
>
> ***54***. *We also reiterate that the decision in R.K. Sabharwal [(1995) 2 SCC 745] is not applicable to the reservation for the persons with disabilities because in the abovesaid case, the point for consideration was with regard to the implementation of the scheme of reservation for SC, ST and OBC, which is vertical reservation, whereas reservation in favour of persons with disabilities is horizontal."*

22. The principles laid down in **National Federation of the Blind**

(supra) are of seminal importance in the present controversy. The respondents herein were under a statutory obligation not only to compute reservation on the basis of total vacancies/cadre strength but also to maintain effective disability-wise reservation in accordance with law. The pleadings and records brought before this Court reveal that despite issuance of Office Memorandums dated 27.09.2014, 17.11.2014, 29.08.2018 and 05.03.2019 by the State Government itself, the respondents failed to undertake proper disability-category-wise allocation while operationalizing the recruitment process. The Office Memorandum dated 29.08.2018 specifically provided for 2% reservation each for visually challenged candidates, hearing impaired candidates and locomotor disability/cerebral palsy candidates, with 1% reservation for multiple disabilities. However, the counselling process and selection methodology adopted by the respondents diluted and virtually obliterated such separate allocation by merging disability reservation with vertical social reservation. The contention advanced on behalf of the State that compartment-wise implementation under Rule 28(5) of the Chhattisgarh Rights of Persons with Disabilities Rules, 2019 permits such methodology also does not merit acceptance.

23. A delegated legislation framed by the State cannot be interpreted in a manner which defeats the parent enactment or nullifies the constitutional character of horizontal reservation recognized by binding judicial precedents. Rule 11 of the Rights of Persons with

Disabilities Rules, 2017 framed under the Central enactment mandates maintenance of separate reservation rosters and implementation of reservation for benchmark disabilities as a distinct class. Any interpretation of the State Rules permitting compartmentalization in a manner destructive of horizontal reservation would clearly be inconsistent with the Central statutory framework.

24. This Court is of the considered view that Rule 28(5) of the State Rules cannot be interpreted so as to dilute the horizontal nature of reservation for persons with benchmark disabilities recognized under the RPWD Act, 2016 and the Central Rules framed thereunder. This Court also finds considerable force in the contention of the petitioners that the respondents failed to maintain the statutorily mandated disability-wise bifurcation of vacancies. The very object of separate distribution amongst blindness and low vision, hearing impairment, locomotor disability and multiple disabilities is to ensure equitable representation of all categories of benchmark disabilities. If all disabled candidates are treated as one undifferentiated class during counselling and selection, candidates suffering from particular disabilities, especially visually impaired candidates, are likely to be disproportionately excluded. Such a consequence would frustrate the legislative intent underlying Section 34 of the RPWD Act, 2016.

25. The RPWD Act, 2016 is a welfare and beneficial legislation

enacted to operationalize the constitutional vision of substantive equality embodied under Articles 14, 16 and 21 of the Constitution. The statute is also intended to give effect to India's obligations under the United Nations Convention on the Rights of Persons with Disabilities. Therefore, the provisions of the Act must receive purposive and liberal interpretation advancing the cause of disabled persons rather than restricting their rights through technical or compartmentalized procedures.

26. The Hon'ble Supreme Court in **Vikash Kumar v. Union Public Service Commission**, reported in **(2021) 5 SCC 370**, while interpreting the RPWD Act, has held in paragraphs 45, 46, 49 and 64 that the principle of reasonable accommodation and substantive equality lies at the heart of disability jurisprudence and that the State is under an affirmative obligation to create conditions ensuring meaningful participation of persons with disabilities. The Court further held that equality for disabled persons cannot be reduced to formal equality but must translate into real and effective access. Paragraphs 45, 46, 49 and 64 are quoted hereunder :

> ***"45**. The 2016 RPwD Act was a landmark legislation which repealed the 1995 Act and brought Indian legislation on disability in line with the United Nations Convention on the Rights of Persons with Disabilities ("Uncrpd"). Under the old regime, disability was*

simply characterised as a medical condition devoid of any understanding of how disability is produced by social structures that cater to able-bodied persons and hamper and deny equal participation of persons with disabilities in the society. Section 2(t) of the 1995 Act defined a "person with disability" in the following terms:

> *"2. (t) "person with disability" means a person suffering from not less than forty per cent of any disability as certified by a medical authority;"*

46. *The 2016 RPwD Act has a more inclusive definition of "persons with disability" evidencing a shift from a stigmatising medical model of disability under the 1995 Act to a social model of disability which recognises that it is the societal and physical constraints that are at the heart of exclusion of persons with disabilities from full and effective participation in society. Section 2(s) of the 2016 RPwD Act [which we have analysed in paras 35-37 above] provides:*

> *"2. (s) "person with disability" means a person with long term physical, mental, intellectual or*

> *sensory impairment which, in interaction with barriers, hinders his full and effective participation in society equally with others;"*

49. *The 2016 RPwD Act now recognises 21 "specified disabilities" and enables the Central Government to add further categories of disability. The 2016 Act also makes special provisions for persons with benchmark disability under Chapters VI and VII of the Act. A person with benchmark disability is defined under Section 2(r) of the 2016 Act [analysed in para 34 above] as:*

> *"2. (r) "person with benchmark disability" means a person with not less than forty per cent of a specified disability where specified disability has not been defined in measurable terms and includes a person with disability where specified disability has been defined in measurable terms, as certified by the certifying authority."*

64. *For instance, for a visually impaired person, the reasonable accommodation she requires might consist of screen magnification software or a screen reader [which can speak out the*

> *content on a computer screen in a mechanical voice]. It might also consist of content being made available in Braille and a sighted assistant. In the same way, for someone with a hearing impairment,reasonable accommodation could consist of speech-to-text converters, access to sign language interpreters, sound amplification systems, rooms in which echo is eliminated and lip-reading is possible. Similarly, for a person with dyslexia, reasonable accommodation could consist of access to computer programmes suited to meet their needs and compensatory time."*

27. The argument advanced by the State that the petitioners participated in the recruitment process and are therefore estopped from challenging the same also deserves rejection. Participation in a selection process does not operate as estoppel where the challenge pertains to violation of statutory rights or constitutional guarantees. More particularly, when the very methodology of reservation adopted by the respondents is alleged to be contrary to the RPWD Act, 2016 and binding judgments of the Hon'ble Supreme Court, the doctrine of acquiescence cannot defeat enforcement of fundamental and statutory rights.

28. The Hon'ble Division Bench while remanding the matter has already clarified that the writ petitions could not have been

dismissed solely on the ground of participation in the process in view of the law laid down by the Hon'ble Apex Court in the matter of **Dr (Major) Meeta Sahai v. State of Bihar, (2019) 20 SCC 17**. Relevant paragraph is quoted hereunder :

> *"17. However, we must differentiate from this principle insofar as the candidate by agreeing to participate in the selection process only accepts the prescribed procedure and not the illegality in it.* ***In a situation where a candidate alleges misconstruction of statutory rules and discriminating consequences arising therefrom, the same cannot be condoned merely because a candidate has partaken in it****. The constitutional scheme is sacrosanct and its violation in any manner is impermissible. In fact, a candidate may not have locus to assail the incurable illegality or derogation of the provisions of the Constitution, unless he/she participates in the selection process."*

29. The contention of the respondents that no prejudice has been caused to the petitioners as they allegedly did not fall within the zone of consideration also cannot be accepted. Once the entire process of reservation and preparation of counselling lists is shown to be legally flawed, prejudice is implicit.

30. The zone of consideration itself stood distorted because the

petitioners and similarly situated disabled candidates were denied consideration within a properly constituted horizontal reservation framework. It is impossible to conclusively determine what the merit position and cut-off would have been had the respondents correctly implemented separate disability-wise horizontal reservation in accordance with law.

31. This Court further finds substance in the grievance of the petitioners that the respondents failed to transparently identify and carry forward backlog vacancies reserved for persons with benchmark disabilities. The judgment rendered in **National Federation of the Blind (supra)** specifically mandated Governments to identify backlog vacancies and undertake special recruitment drives for filling up the same. The material placed before this Court does not satisfactorily establish that the backlog vacancies were computed and advertised in a transparent disability-wise manner consistent with the statutory mandate. Mere reference to carry-forward vacancies without proper disclosure and category-wise bifurcation cannot be treated as sufficient compliance with the law declared by the Hon’ble Supreme Court.

32. Another aspect which cannot be overlooked is that the respondents themselves had adopted a different methodology during earlier recruitment processes wherein reservation for persons with disabilities was maintained distinctly as a horizontal category. No rational explanation has been furnished as to why

the respondents deviated from the earlier procedure while conducting the present recruitment. Administrative consistency is an essential facet of Article 14 of the Constitution and any departure from established policy affecting substantive rights must be supported by cogent reasons. In absence of any justifiable rationale, the deviation adopted in the present recruitment process becomes manifestly arbitrary.

33. This Court also cannot ignore the recent observations of the Hon'ble Supreme Court in **In Re: Recruitment of Visually Impaired in Judicial Services,** wherein the Apex Court reiterated that persons with disabilities constitute a distinct class requiring affirmative measures including separate standards, accommodations and meaningful reservation mechanisms. The Supreme Court emphasized that disability-based discrimination is a constitutional concern and State authorities must ensure that recruitment frameworks do not indirectly exclude disabled candidates through procedural or structural barriers. The observations made therein further reinforce the conclusion that the respondents herein failed to implement the reservation policy in a manner consistent with the constitutional mandate of substantive equality.

34. In view of the foregoing discussion, this Court is of the considered opinion that the impugned advertisements dated 04.05.2023 and the consequential counselling notification dated 12.08.2023, insofar as they relate to implementation of reservation for persons

with benchmark disabilities, suffer from manifest arbitrariness, illegality and violation of Section 34 of the Rights of Persons with Disabilities Act, 2016, Rule 11 of the Rights of Persons with Disabilities Rules, 2017 and the binding Office Memorandums issued by the State Government. The respondents acted contrary to the law laid down by the Hon'ble Supreme Court in **Indra Sawhney (supra), National Federation of the Blind (supra), Rajesh Kumar Daria (supra), Vikash Kumar (supra)** and other binding precedents governing horizontal reservation and rights of persons with disabilities.

35. Consequently, the writ petitions deserve to succeed and are accordingly allowed. The impugned advertisements dated 04.05.2023 and the counselling notification dated 12.08.2023 are hereby quashed to the limited extent they implement reservation for persons with benchmark disabilities by linking or compartmentalizing the same with vertical social-category reservation contrary to law. The respondents are directed to undertake the process afresh insofar as reservation for persons with benchmark disabilities is concerned by strictly implementing Section 34 of the RPWD Act, 2016, Rule 11 of the RPWD Rules, 2017 and the Office Memorandums dated 27.09.2014, 17.11.2014, 29.08.2018 and 05.03.2019.

36. The respondents are further directed to:

(i) prepare and maintain separate disability-wise horizontal reservation rosters for visually impaired candidates, hearing

impaired candidates, locomotor disability/cerebral palsy candidates and multiple disability candidates;

(ii) compute reservation for persons with benchmark disabilities against the total cadre strength/vacancies in accordance with the law laid down in National Federation of the Blind (supra);

(iii) identify, disclose and carry forward backlog vacancies disability-wise in a transparent manner;

(iv) prepare fresh counselling and merit lists by treating persons with benchmark disabilities as a separate horizontal class independent of vertical reservation; and

(v) complete the aforesaid exercise expeditiously, preferably within a period of four months from the date of receipt of certified copy of this order.

37. It is made clear that appointments already made pursuant to interim orders of this Court shall remain subject to the outcome of the fresh exercise directed herein. The respondents shall also ensure that no eligible candidate belonging to the category of persons with benchmark disabilities is denied consideration contrary to the mandate of the RPWD Act, 2016.

38. It is, however, made expressly clear that the present judgment and the directions issued herein are confined only to the implementation of reservation in favour of persons with benchmark disabilities under the Rights of Persons with Disabilities Act, 2016. Consequently, the fresh exercise directed

by this Court shall be undertaken only with respect to the vacancies/posts reserved for persons with benchmark disabilities and the manner of their allocation, counselling and selection.

39. It is further clarified that the appointments, selections and service conditions of candidates belonging to all other categories, including Unreserved, Scheduled Castes, Scheduled Tribes, Other Backward Classes, Economically Weaker Sections and other eligible categories, which have already been made or may be made pursuant to the impugned recruitment process, shall remain unaffected by this judgment. This order shall not operate to disturb, annul, cancel or adversely affect the appointments of such candidates in any manner whatsoever.

40. The respondents shall undertake the exercise directed herein in such a manner that no prejudice is caused to candidates whose appointments are otherwise valid and are not under challenge in the present proceedings. In the event the respondents find it necessary, for the purpose of effectuating the statutory reservation in favour of persons with benchmark disabilities and for ensuring compliance with the mandate of the RPWD Act, 2016, they shall be at liberty to seek creation of supernumerary/additional posts or adopt any other lawful administrative measure permissible under law so that the rights of persons with benchmark disabilities are protected without unsettling appointments already made in favour of other categories of candidates.

41. With the aforesaid observations and directions, the present batch of writ petitions stands allowed.

No order as to costs.

Sd/-

(Amitendra Kishore Prasad)
Judge

Shayna / Vishakha